

NCD 30.3.3: Acupuncture for Chronic Lower Back Pain (cLBP)

Version 1, effective 01/21/2020

A. General

Acupuncture is the selection and manipulation of specific acupuncture points by a variety of needling and non-needling techniques.

B. Nationally Covered Indications

Effective for services performed on or after January 21, 2020, CMS will cover acupuncture for Medicare patients with chronic Lower Back Pain (cLBP). Up to 12 visits in 90 days are covered for Medicare beneficiaries under the following circumstance:

For the purpose of this decision, cLBP is defined as:

Lasting 12 weeks or longer;

nonspecific, in that it has no identifiable systemic cause (i.e., not associated with metastatic, inflammatory, infectious, etc.disease);

not associated with surgery; and,

not associated with pregnancy.

An additional 8 sessions will be covered for those patients demonstrating an improvement.

No more than 20 acupuncture treatments may be administered annually

Treatment must be discontinued if the patient is not improving or is regressing.

Physicians (as defined in 1861(r)(1) of the Social Security Act (the Act) may furnish acupuncture in accordance with applicable state requirements.

Physician assistants (PAs), nurse practitioners (NPs)/clinical nurse specialists (CNSs) (as identified in 1861(aa)(5) of the Act), and auxiliary personnel may furnish acupuncture if they meet all applicable state requirements and have:

a masters or doctoral level degree in acupuncture or Oriental Medicine from a school accredited by the Accreditation Commission on Acupuncture and Oriental Medicine (ACAOM); and,

a current, full, active, and unrestricted license to practice acupuncture in a State, Territory, or Commonwealth (i.e. Puerto Rico) of the United States, or District of Columbia.

Auxiliary personnel furnishing acupuncture must be under the appropriate level of supervision of a physician, PA, or NP/CNS required by our regulations at 42 CFR Sec.Sec. 410.26 and 410.27.

C. Nationally Non-Covered Indications

All types of acupuncture including dry needling for any condition other than cLBP are non-covered by Medicare.

D. Other

N/A

(This NCD last reviewed January 2020.)